



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Sophia Maes
Subject: PUDC-24-25 | High Plains Road – Annexation
Date: April 8, 2024

Background:

The item for consideration is an *Annexation*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 04/08/2024
- Public Services Committee 04/16/2024
- Second reading 04/22/2024
- Public Services Committee 05/07/2024
- Third and final reading 05/13/2024

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, HIGH PLAINS ROAD BEGINNING AT SOUTH GREELEY HIGHWAY AND TERMINATING AT DIVISION AVENUE."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

(a) That Laramie County, Wyoming, owner of:

A PARCEL OF LAND LOCATED IN A PORTION OF THE SOUTHWEST QUARTER AND SOUTHWEST QUARTER OF THE SOUTHEAST QUARTER OF SECTION 20, A PORTION OF THE NORTHWEST QUARTER AND NORTHEAST QUARTER OF THE NORTHEAST QUARTER OF SECTION 29 AND A PORTION OF THE NORTHEAST QUARTER SECTION 30, TOWNSHIP 13 NORTH, RANGE 66 WEST OF THE 6TH PRINCIPAL MERIDIAN COUNTY OF LARAMIE, STATE OF WYOMING AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE SECTION CORNER COMMON TO SAID SECTIONS 19, 20, 29 AND 30; THENCE S89°31'19"W ALONG THE SOUTH LINE OF SAID SECTION 19 A DISTANCE OF 40.07 FEET TO A POINT ON THE WEST RIGHT OF WAY OF DIVISION AVE; THENCE ALONG SAID WEST RIGHT OF WAY S01°12'35"W A DISTANCE OF 49.25 FEET TO A POINT OF INTERSECTION OF SAID WEST RIGHT OF WAY LINE AND THE EXTENSION OF THE SOUTH RIGHT OF WAY OF HIGH PLAINS ROAD; THENCE S89°24'34"E A DISTANCE OF 1846.83 FEET; THENCE CONTINUING ALONG SAID SOUTH RIGHT OF WAY OF HIGH PLAINS ROAD THE FOLLOWING COURSES AND DISTANCES:

S00°33'36"W A DISTANCE OF 10.00 FEET; THENCE S89°24'34"E A DISTANCE OF 498.34 FEET; THENCE N00°34'30"W A DISTANCE OF 20.00 FEET; THENCE S89°24'34"E A DISTANCE OF 418.27 FEET TO A POINT ON THE WEST RIGHT OF WAY OF US HIGHWAY 85; THENCE ALONG SAID WEST RIGHT OF WAY N03°01'34"W A DISTANCE OF 90.18 FEET TO A POINT ON THE NORTH RIGHT OF WAY OF HIGH PLAINS ROAD; THENCE ALONG SAID NORTH RIGHT OF WAY THE FOLLOWING COURSES AND DISTANCES: N89°24'34"W A DISTANCE OF 471.85 FEET; THENCE N06°37'22"E A DISTANCE OF 10.06 FEET; THENCE N89°24'34"W A DISTANCE OF 1200.24 FEET; THENCE S06°31'54"W A DISTANCE OF 20.11 FEET; THENCE N89°24'34"W A DISTANCE OF 400.39 FEET TO THE BEGINNING OF A CURVE TO THE RIGHT; SAID CURVE HAVING A RADIUS OF 470.00 FEET, A CHORD BEARING OF N81°54'10"W, A CHORD DISTANCE OF 122.69 FEET, A CENTRAL ANGLE OF 14°59'58" THENCE

ALONG THE ARC OF SAID CURVE A DISTANCE OF 123.04 FEET; THENCE N74°24'34"W A DISTANCE OF 97.54 FEET TO THE BEGINNING OF A CURVE TO THE LEFT; SAID CURVE HAVING A RADIUS OF 550.00 FEET, A CHORD BEARING OF N81°54'53"W, A CHORD DISTANCE OF 143.58 FEET AND A CENTRAL ANGLE OF 15°00'00", THENCE ALONG THE ARC OF SAID CURVE A DISTANCE OF 143.99 FEET; THENCE N89°24'34"W A DISTANCE OF 245.53 FEET TO A POINT ON THE EAST RIGHT OF WAY OF DIVISION AVE; THENCE ALONG SAID EAST RIGHT OF WAY THE FOLLOWING COURSES AND DISTANCES: THENCE N00°17'44"E A DISTANCE OF 112.93 FEET TO THE BEGINNING OF A CURVE TO THE LEFT; SAID CURVE HAVING A RADIUS OF 550.00 FEET, A CHORD BEARING OF N07°12'16"W, A CHORD DISTANCE OF 143.58 FEET AND A CENTRAL ANGLE OF 15°00'00"; THENCE ALONG THE ARC OF SAID CURVE A DISTANCE OF 143.99 FEET; THENCE N14°42'16"W A DISTANCE OF 20.28 FEET TO THE BEGINNING OF A CURVE TO THE RIGHT; SAID CURVE HAVING A RADIUS OF 470.00 FEET, A CHORD BEARING OF N07°12'16"W, A CHORD DISTANCE OF 122.69 FEET AND A CENTRAL ANGLE OF 14°59'58"; THENCE ALONG THE ARC OF SAID CURVE A DISTANCE OF 123.04 FEET TO A POINT ON THE WEST LINE OF SECTION 20; THENCE ALONG THE WEST LINE OF SAID SECTION 20 S00°17'44"W A DISTANCE OF 496.31 FEET TO THE POINT OF BEGINNING.

SAID PARCEL OF LAND CONTAINS 7.23 ACRES MORE OR LESS

has petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof;

- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Scott Bruce, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 16571;
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne;
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne;
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished;
- (f) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the

entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle





A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE GOVERNING BODY

APRIL 8, 2024

STAFF REPORT

FILE: PUDC-24-25: High Plains Road - Annexation

REQUEST: An annexation of 7.23 acres of High Plains Road and a small portion of Division Avenue.

LOCATION: West of South Greeley Highway and north of Richard Road

APPLICANT: Justin Arnold, Laramie County

OWNERS: Laramie County, Wyoming

PURPOSE: City control and maintenance of the street

PREPARED BY: Sophia Maes, Planner I



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

The applicant requests the annexation of 7.23 acres of land. The land is currently a partially developed county-owned road (fully developed on the east portion, undeveloped on the west portion). It connects to South Greeley Highway on the east and will be connected to Division Avenue on the west once fully constructed.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	N/A	N/A	Road/ Circulation
North	Mixed-Use Commercial	County CB Community Business, County A-2 Agricultural	Storage, Vacant
South	Mixed-Use Commercial/ Mixed-Use Residential	County PUD	Limited Industrial
East	Mixed-Use Employment/ Industrial	County CB/ County AR Agricultural Residential	Limited Industrial, Vacant
West	Mixed-Use Residential	County AR, City LI Light Industrial	Rural Residential, Vacant (proposed data center)

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]

The annexation of this property will increase the health, safety, and welfare of the future occupants. By being within City limits, the property will receive access to City Fire and Police and road maintenance services.

The application **complies** with this review criterion.

- 2) The urban development of the area sought to be annexed would constitute a natural, geographical, economic, and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]**

This property will constitute a natural, geographic, economic, and social part of the city. The property is a direct connection for the High Plains Business Park (948.88 acres of City property and the site of Project Cosmo) to South Greeley Highway. Annexation of this property will benefit those who live within the City and will be a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

- 3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]**

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation. Utility infrastructure exists adjacent to the property in Division Avenue.

The application **complies** with this review criterion.

- 4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]**

The area proposed for annexation is about 8.3% contiguous. It is directly adjacent to High Plains Business Park (948.88 acres of City parcel) and is contiguous via the intersection of High Plains Road and Division Avenue.

The application **complies** with this review criterion.

- 5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]**

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

- 6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]**

A certified mailing was made to the landowners and public utilities on March 8th, 2024. The public hearing for this annexation is scheduled for April 8th, 2024. Twenty (20) business days (on the City's calendar) prior to the announced public hearing was March 11th, 2024. The earliest confirmation of delivery was dated March 11th, 2024.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

The Future Land Use Map of PlanCheyenne, as updated by Connect 2045, anticipates this area of the community to develop as urban residential. These areas can develop with or without access to urban services. The area is within the Urban Service Boundary.

STAFF REVIEW:

Through the review process, no comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

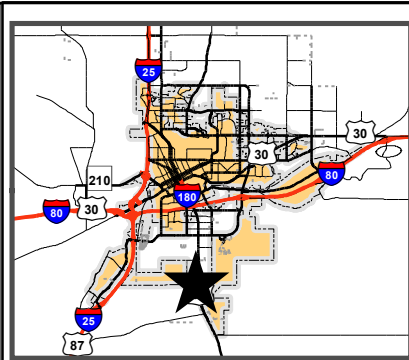
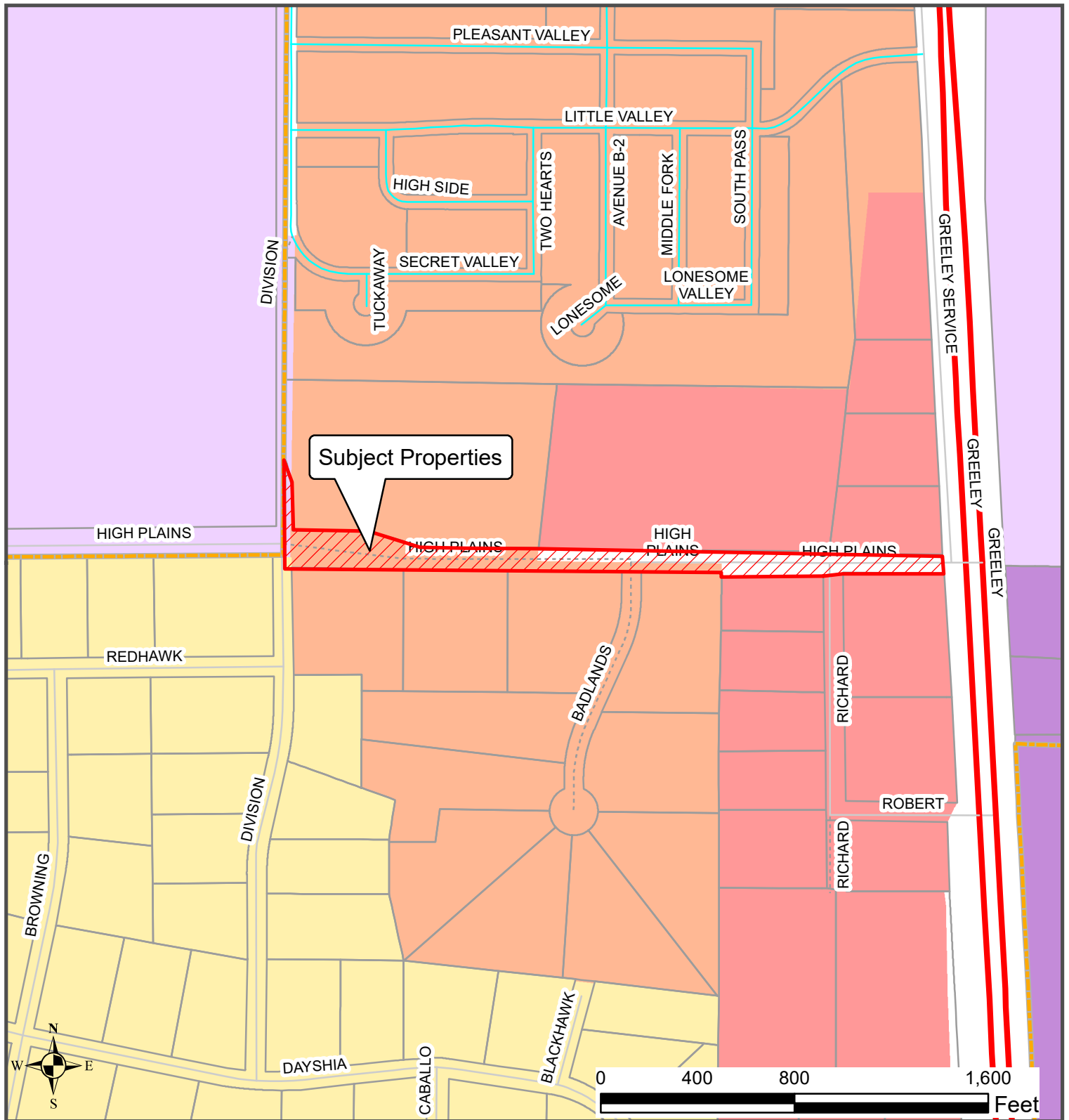
The proposed annexation is a natural extension of the City, is adjacent and contiguous (8.3%) to the current City limits, and services typically available to urban areas are available to be extended to this property.

STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

1. Future Land Use Map
2. Submitted Application
3. Annexation Petition
4. Applicant-submitted annexation map



Attachment 2: Land Use Map PUDC-24-25

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



Cheyenne, WY

2/15/2024

PUDC-24-25

Annexation

Status: Active

Submitted On: 2/7/2024

Primary Location

0

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Owner**Applicant**

Justin Arnold

307-633-4523

justin.arnold@laramiecountywy.gov

 3966 Archer Parkway
Cheyenne, WY 82009

Application Information

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

Please Note: Annexation applications may **not be withdrawn** (Wyoming State Statute 15-1-403 b). If mylars are not provided in an attempt to 'withdraw' the application, the City will hire a surveyor to produce mylars and invoice the applicant for the work preformed.

The property owner is aware this application may not be withdrawn.*



I understand final stamped and signed mylars are required prior to final Governing Body approval.*

**Project Name***

High Plains Road Annexation

Annexation Type*

Landowner Petition

Pursuant to UDC 2.4.2 and 2.2.8, the City zone assigned will be the standard City zone most closely matching the current County zone. If the assigned zone is not the desired zone, please also apply for a zoning map amendment. The anticipated assigned zoning based on the current County and City zoning requirements can be found on a policy document [here](#).

Annexation Review Criteria

The following review criteria are found in Wyoming State Statute regarding annexation. Please acknowledge the proposed annexation meets each review criterion by checking the box.

An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town (15-1-402 a i)*



The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town (15-1-402 a ii)*



The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed (15-1-402 a iii)*



The area sought to be annexed is contiguous with  or adjacent to the annexing city or town (15-1-402 a iv)*



Percent Contiguous*

0.0964

No tract of land or any part thereof, whether consisting of one (1) parcel or two (2) or more contiguous parcels owned by one (1) landowner or owned jointly by two (2) or more landowners as cotenants, which comprises forty (40) acres or more and which together with the buildings or improvements situated thereon has an assessed valuation in excess of forty thousand dollars (\$40,000.00) as of the current assessment for property tax purposes, may be annexed without the written consent of the landowner or landowners, unless the tract of land is situated entirely within the boundaries of the annexing city or town (15-1-412)*



Zoning Assignment Review Criteria

The review criterion for a zoning assignment:

"1. The proposed zoning assignment is the most analogous City zone to the current zone when taking into consideration allowed uses. Zoning for standard county zones shall be assigned based on the policy document, while zones not listed on the policy document and terminated City zones shall be assigned a City zone on a case-by-case basis." (UDC 2.2.8.d.1)

If the assigned zone is not the desired zone, please submit for a separate zoning map amendment. Check the box to acknowledge this requirement.*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



Justin Robert Arnold
Jan 26, 2024



PETITION FOR ANNEXATION

TO: **THE HONORABLE MAYOR, PATRICK COLLINS,**

AND MEMBERS OF THE CITY COUNCIL OF THE CITY OF
CHEYENNE, WYOMING:

KNOW ALL THAT Laramie County, WY,
Owner name(s)

The undersigned owners, hereby petition to annex to the City of Cheyenne,
Wyoming, the following described property:

Legal description of requested annexation (attach additional sheet if necessary):

(See annexation map)

The undersigned petitioners hereby respectfully request that said property and adjacent streets be annexed to the City of Cheyenne, and be made a part thereof.

By submitting the petition for annexation, the undersigned agree to abide with all applicable provisions and City ordinances, rules, and regulations involving annexation.



Planning and Development Department – ANNEXATION PETITION

Attach additional sheet if necessary.

	Justin Arnold, Director, Laramie County Planning	2/7/2024
Signature	Printed Name	Date

Signature	Printed Name	Date
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Signature	Printed Name	Date
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Note: According to Wyoming State Statute § 15-1-403(b), no signature is valid if it is dated more than 180 days prior to the date of filing. No person signing a petition for annexation may withdraw his/her signature from the petition after it has been filed with the City Clerk.

Attest:

